

(12) **United States Design Patent** (10) **Patent No.:** **US D770,136 S**
Darmour (45) **Date of Patent:** **** *Nov. 1, 2016**

(54) **GARMENT**

(71) Applicant: **NIKE, Inc.**, Beaverton, OR (US)

D294,881 S 3/1988 Swanson
D306,511 S 3/1990 Jones
D330,106 S 10/1992 Aubuchon et al.

(Continued)

(72) Inventor: **Rob Darmour**, Portland, OR (US)

FOREIGN PATENT DOCUMENTS

(73) Assignee: **NIKE, Inc.**, Beaverton, OR (US)

EM 000082607-0002 * 2/2004
EM 000082607-0003 * 2/2004
GB 2087449 * 12/1999

(*) Notice: This patent is subject to a terminal disclaimer.

OTHER PUBLICATIONS

(**) Term: **14 Years**

3M Fanatics, Vapor Flash Jackets—p. 23, Announced Dec. 9, 2014,
[Site Visited Jan. 27, 2016] <http://niketalk.com/t/319284/for-3m-fanatics-vapor-flash-jacket/660>.*

(21) Appl. No.: **29/522,005**

(Continued)

(22) Filed: **Mar. 26, 2015**

(51) **LOC (10) Cl.** **02-02**

(52) **U.S. Cl.**

USPC **D2/828**

(58) **Field of Classification Search**

USPC D2/828, 829, 831, 830, 839, 840;
2/108, 93, 96, 97, 905, 69.5, 456, 70,
2/84, 16

CPC A41D 13/00; A41D 3/00; A41D 27/10;
A41D 27/04; A41D 15/04; A41D 13/001;
A41D 27/20; A41D 13/08; H04R 5/02;
A41F 5/00; A42B 1/048

See application file for complete search history.

Primary Examiner — John Windmuller

Assistant Examiner — Luqman McNeil

(74) *Attorney, Agent, or Firm* — Banner & Witcoff, Ltd.

(57) **CLAIM**

The ornamental design for a garment, as shown and described.

DESCRIPTION

FIG. 1 is a front left perspective view of a garment showing my new design in an in-use configuration;
FIG. 2 is a front right perspective view thereof;
FIG. 3 is a front view thereof;
FIG. 4 is a rear view thereof;
FIG. 5 is a left side view thereof;
FIG. 6 is a right side view thereof;
FIG. 7 is a top view thereof; and,
FIG. 8 is a bottom view thereof.

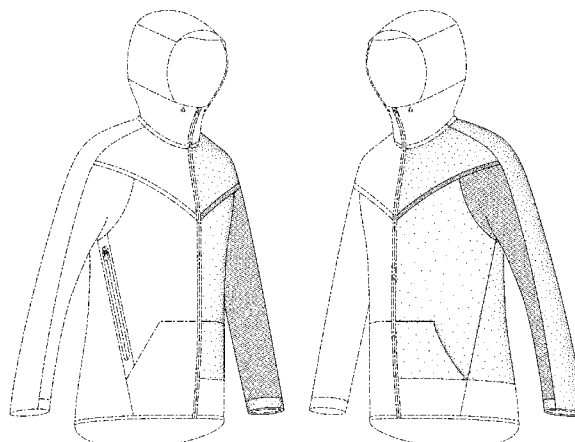
The broken lines immediately adjacent to the shaded area represent unclaimed boundaries of the design. The unshaded regions, demarcated by broken lines, represent unclaimed portions of the garment and form no part of the claimed design. The contrast in shading represents a contrast of appearance and does not represent any particular color, texture, or material.

1 Claim, 7 Drawing Sheets

(56) **References Cited**

U.S. PATENT DOCUMENTS

D54,283 S 12/1919 Sollen
D103,617 S 3/1937 Leitterman et al.
D110,663 S 7/1938 Riordan
D115,591 S 7/1939 Shapiro et al.
D115,592 S 7/1939 Shapiro et al.
D117,331 S 10/1939 Callahan
D126,953 S 4/1941 Kirschenbaum
D161,540 S 1/1951 Russfield
D218,587 S 9/1970 Lawson
D243,723 S * 3/1977 Schaefer D2/829
4,646,366 A * 3/1987 Nishida A41D 13/00
2/108



(56)

References Cited

U.S. PATENT DOCUMENTS

D338,773	S	*	8/1993	Wilde		D2/831
D385,088	S		10/1997	Handysides		
D387,190	S		12/1997	Garcia		
D414,913	S		10/1999	Katz et al.		
6,119,270	A	*	9/2000	Chou		A41D 3/00 2/108
D478,708	S		8/2003	Miros et al.		
D527,868	S	*	9/2006	Wager		D2/828
D529,687	S	*	10/2006	Rindle		D2/828
D531,783	S		11/2006	Collier		
D588,783	S		3/2009	Olstorn		
7,684,755	B2	*	3/2010	Pierce		H04R 5/02 2/905
D621,132	S		8/2010	Crisp		
D622,937	S	*	9/2010	Bay		D2/830
D636,973	S		5/2011	Smith et al.		
D637,794	S		5/2011	Gosse		
D638,201	S		5/2011	Gosse		
D638,202	S		5/2011	Gosse		
D648,924	S		11/2011	Propst		
D654,664	S	*	2/2012	Evans		D2/839
D662,282	S	*	6/2012	Meunier-Bouchard		D2/828
D662,284	S	*	6/2012	Lam		D2/831
D665,152	S	*	8/2012	Morales		D2/840
D675,400	S		2/2013	Mertes		
D679,072	S		4/2013	Abbevik et al.		
D685,160	S	*	7/2013	Savage		D2/831
D692,210	S		10/2013	Farron et al.		
D693,990	S	*	11/2013	Farron		D2/839
D694,992	S	*	12/2013	Farron		D2/828
D698,526	S		2/2014	Roberts et al.		
D698,528	S		2/2014	Roberts et al.		
8,661,563	B2	*	3/2014	Evans		A41D 13/08 2/16
D703,922	S	*	5/2014	Roberts		D2/829
D704,418	S		5/2014	Holmes		
D704,419	S		5/2014	Holmes		
D704,924	S	*	5/2014	Roberts		D2/831
D713,620	S		9/2014	Pezzimenti et al.		
D713,621	S		9/2014	Pezzimenti et al.		
D714,525	S		10/2014	Payne		
D714,527	S		10/2014	Borovicka		
2003/0051286	A1	*	3/2003	Gregg		A41D 27/10 2/93
2004/0055069	A1	*	3/2004	Clarke Fayle		A41D 3/00 2/93
2004/0143884	A1	*	7/2004	Majerfeld		A41D 27/04 2/96
2009/0249529	A1	*	10/2009	Rodriguez		A41D 3/00 2/97
2011/0088135	A1	*	4/2011	Snyder		A41D 15/04 2/69.5
2012/0005812	A1	*	1/2012	Corzatt		A41D 13/001 2/456
2012/0204313	A1	*	8/2012	Evans		A41F 5/00 2/70
2013/0042384	A1	*	2/2013	Mitchell		A42B 1/048 2/84
2013/0219581	A1	*	8/2013	Schrimpf		A41D 27/20 2/69

OTHER PUBLICATIONS

Nike Sweatless Hooded Jacket—6pm, Announced Jan. 17, 2013, [Site Visited Jan. 27, 2016] <http://www.6pm.com/nike-sweatless-hooded-jacket>.*

Nike Apparel Catalog, Fall 2010 Performance Apparel, p. 40, published date unknown, but prior to the filing date of the present application, NIKE, Inc., USA.

Nike Apparel Catalog, Spring 2011 Men's Apparel: Performance, p. 54, published date unknown, but prior to the filing date of the present application, NIKE, Inc., USA.

* cited by examiner

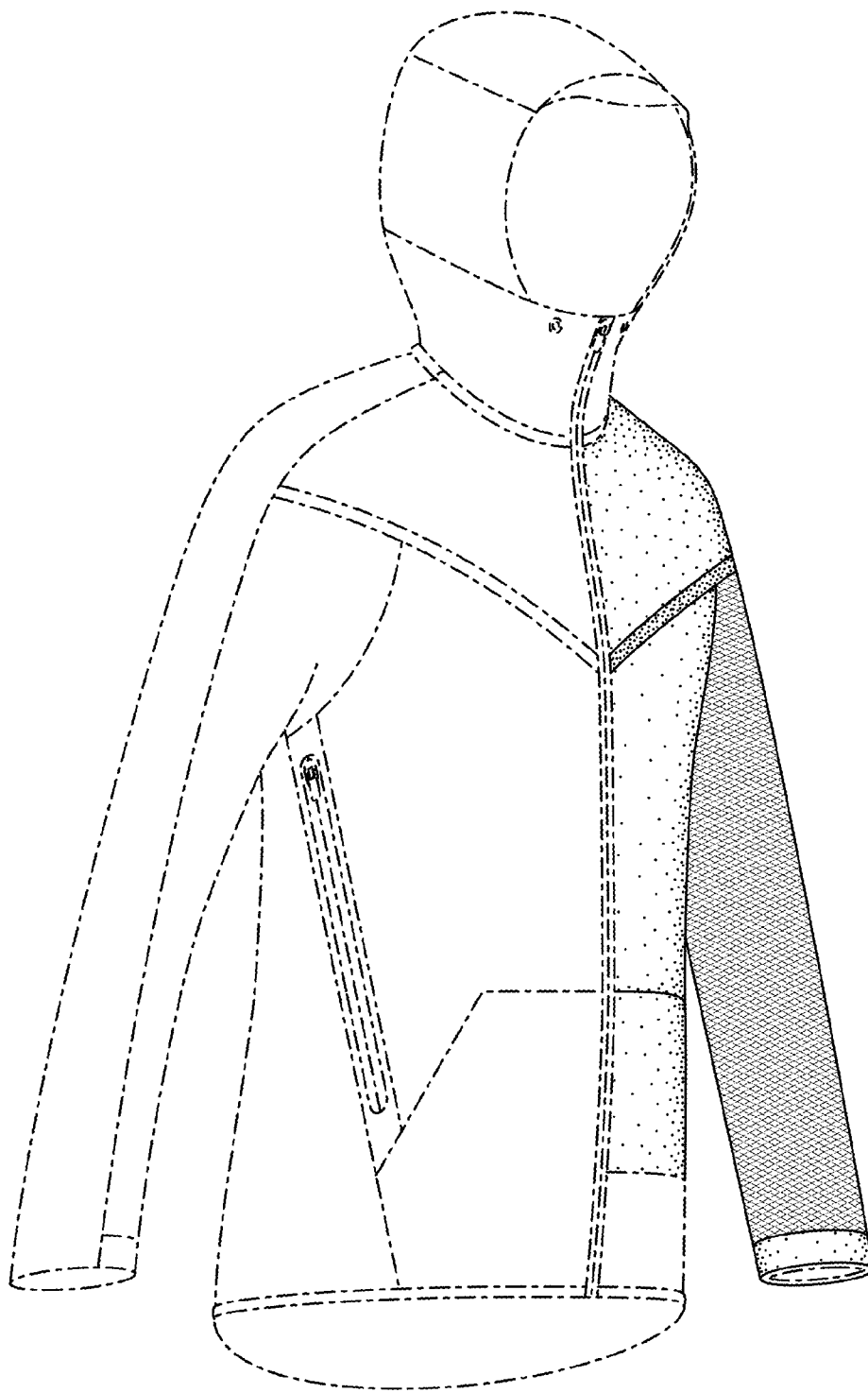


FIG. 1

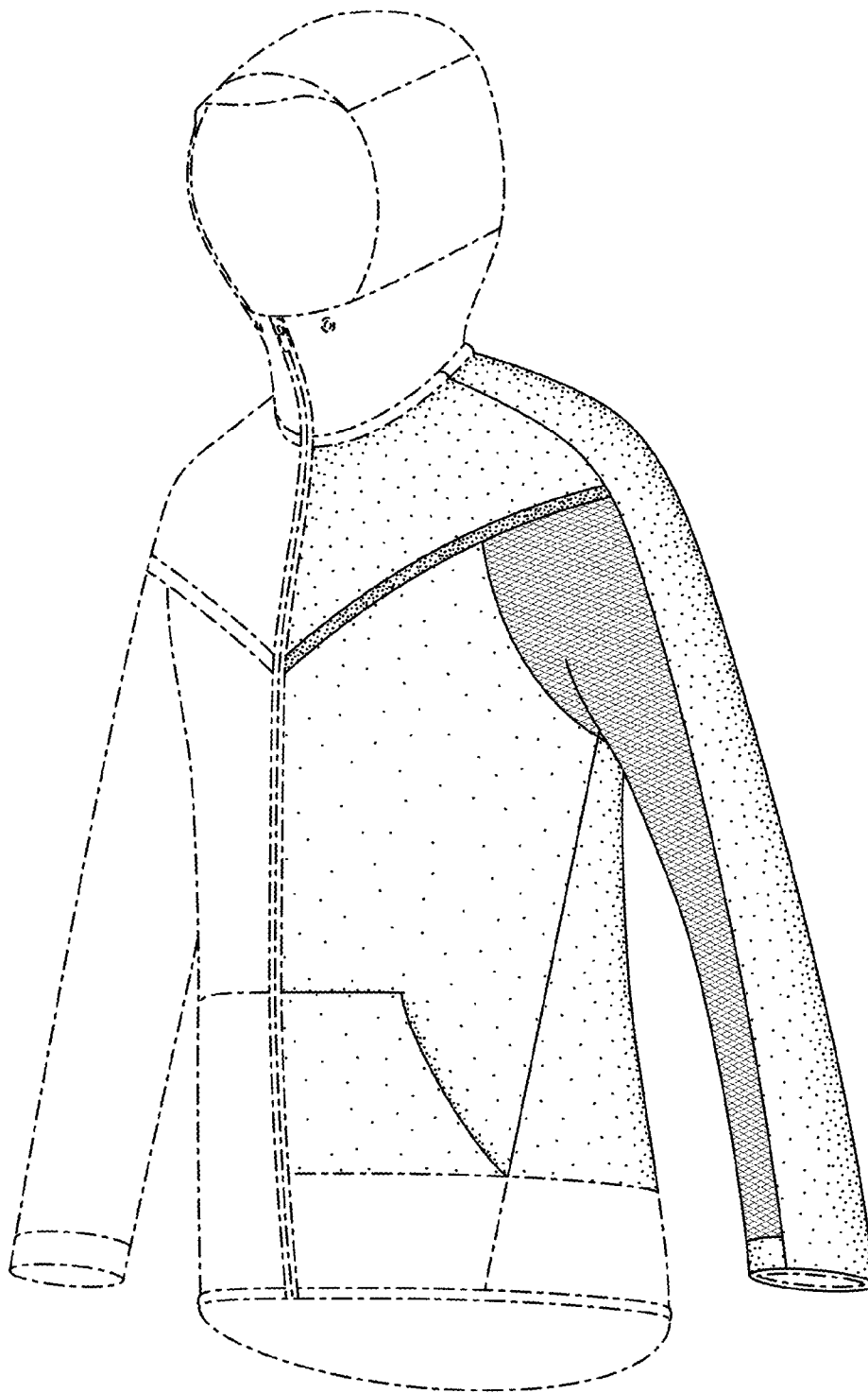


FIG. 2

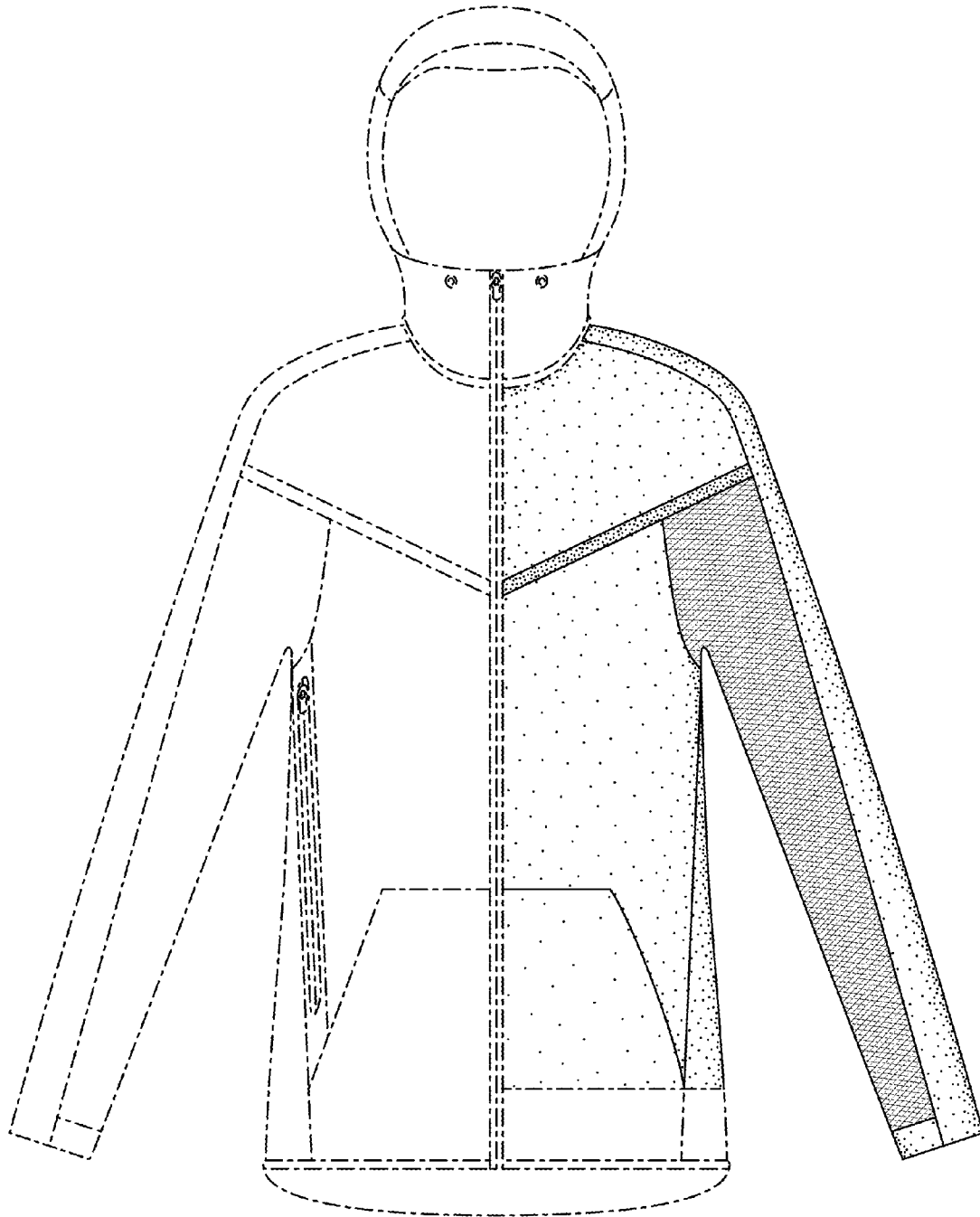


FIG. 3

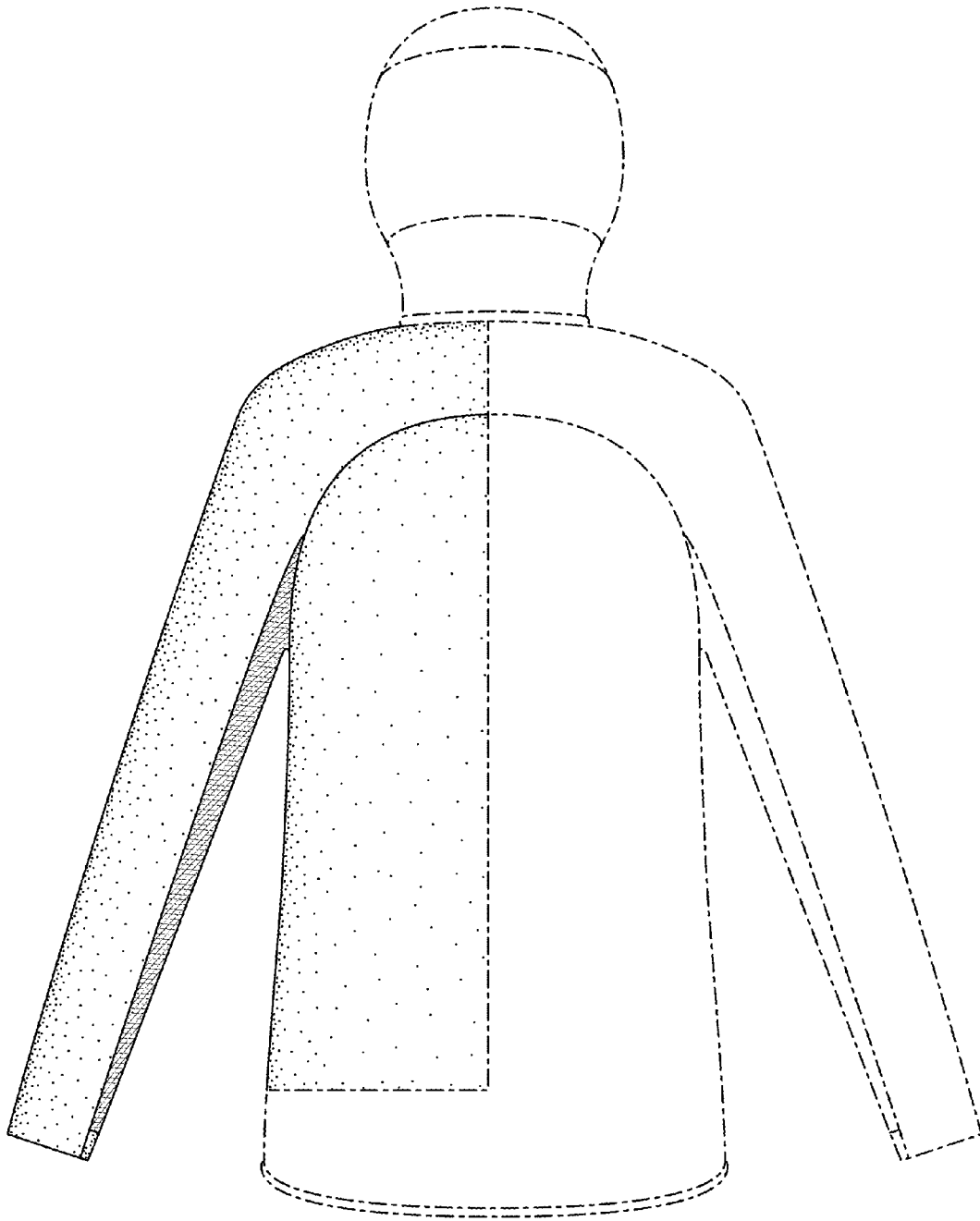


FIG. 4

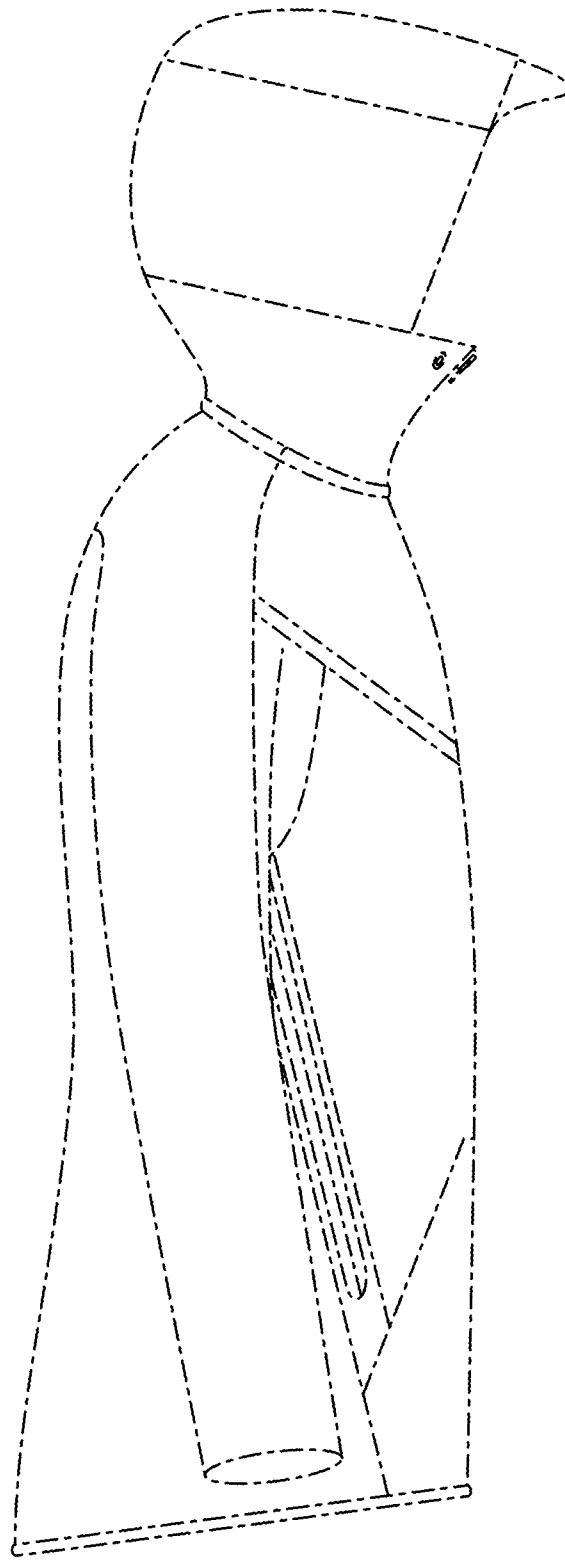


FIG. 5

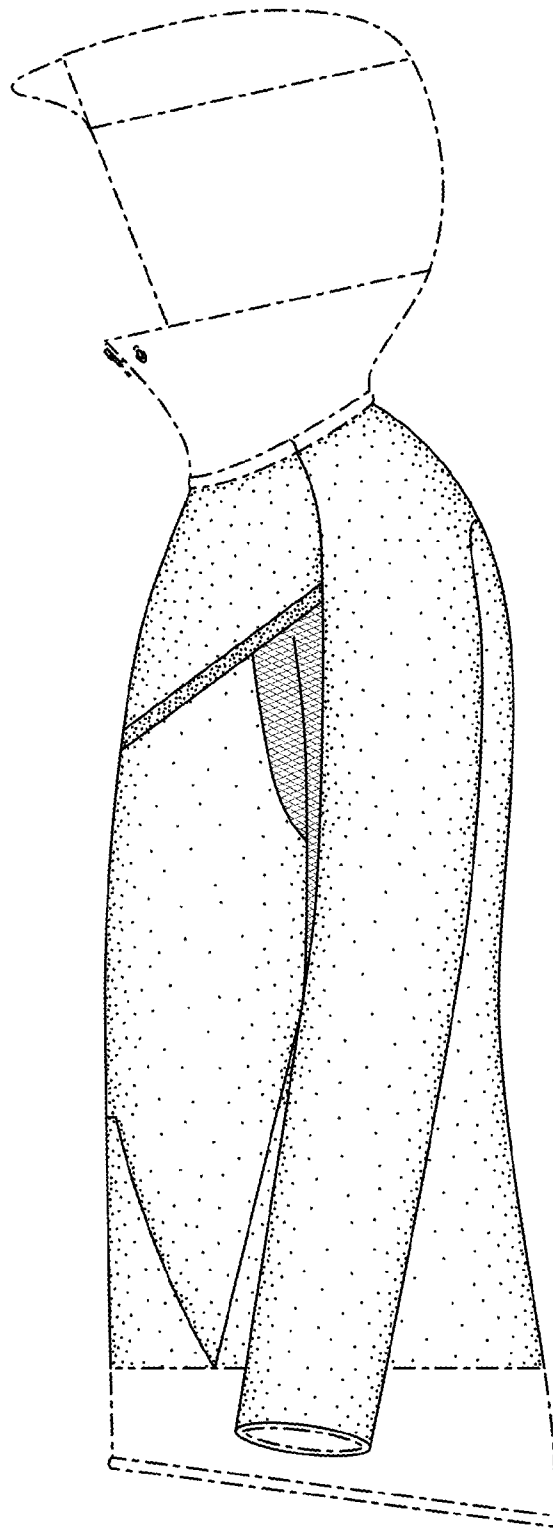


FIG. 6

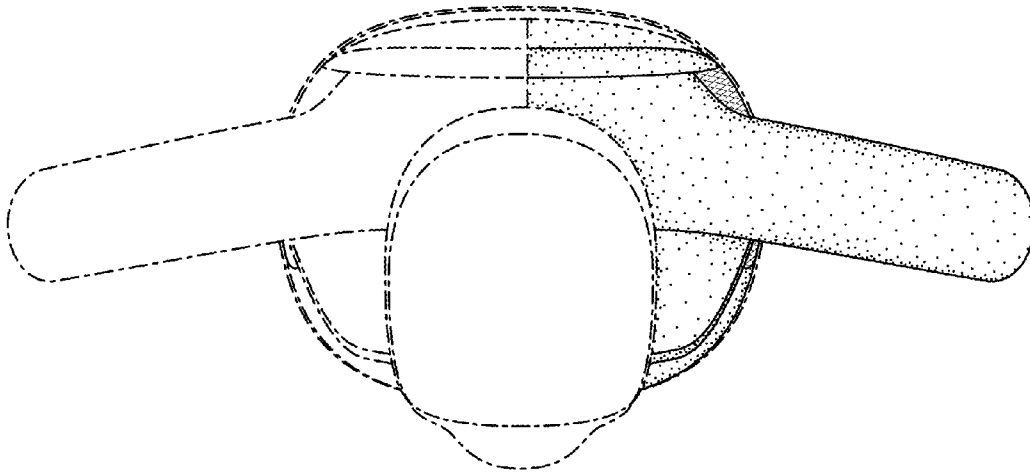


FIG. 7

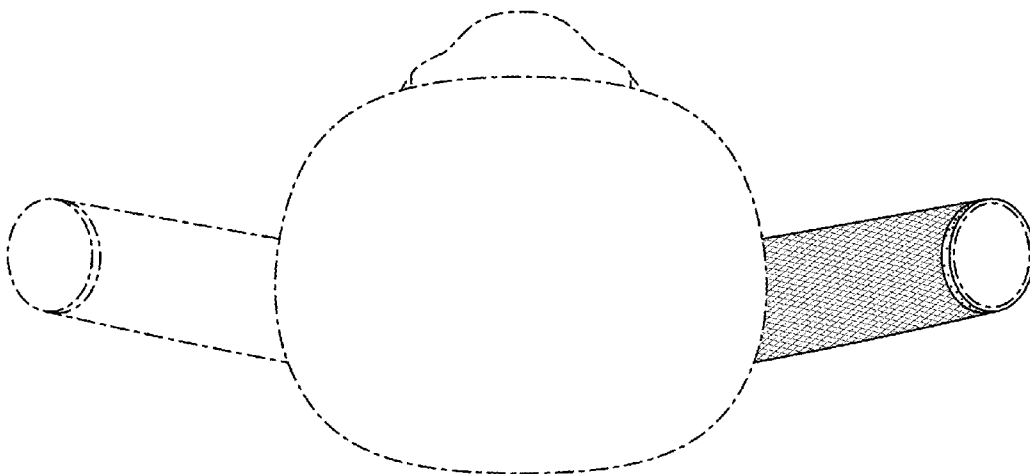


FIG. 8